

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X **SUMMONS**

JEROME JONES,
Plaintiff,

- against -

Plaintiff designates
Bronx County as the
place of trial.

THE CITY OF NEW YORK, LIEUTENANT KEITH
SMITH, from Bronx Robbery Squad,
DETECTIVE ELLIS DeLOREN, from Bronx
Robbery Squad, DETECTIVE "JOHN"
TESSITORE, first name unknown, from
Bronx Robbery Squad, DETECTIVE "JOHN"
ST. HILLAIRE, first name unknown, from
Bronx Robbery Squad, POLICE OFFICER,
THOMAS McLAUGHLIN, "JOHN DOES 1-5" names
unknown, but believed to be police
officers involved in prosecution of
plaintiff;
Defendants.

The basis of venue is:
County of Occurrence

Plaintiff resides at
760 Tinton Avenue
Bronx, NY

-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this
action, and to serve a copy of your answer, or, if the complaint
is not served with this summons, to serve a notice of appearance
on the Plaintiff's attorneys within twenty days after the service
of this summons, exclusive of the day of service, where service
is made by delivery upon you personally within the state, or,
within 30 days after completion of service where service is made
in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the
relief demanded in the complaint.

Dated: Mineola, New York
April 28, 2017



Steve Marchelos
MARCHELOS LAW P.C.
Attorneys for Plaintiff(s)
JEROME JONES
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

LIEUTENANT KEITH SMITH
Bronx Robbery Squad
1086 Simpson Street
Bronx, NY 10459

or
42nd Police Precinct
830 Washington Ave.
Bronx, NY, 10451-4604

DETECTIVE ELLIS DeLOREN
Bronx Robbery Squad
1086 Simpson Street
Bronx, NY 10459

or
42nd Police Precinct
830 Washington Ave.
Bronx, NY, 10451-4604

DETECTIVE "JOHN" TESSITORE
first name unknown
Bronx Robbery Squad
1086 Simpson Street
Bronx, NY 10459

or
42nd Police Precinct
830 Washington Ave.
Bronx, NY, 10451-4604

DETECTIVE "JOHN" ST. HILLAIRES
first name unknown
Bronx Robbery Squad
1086 Simpson Street
Bronx, NY 10459

or
42nd Police Precinct
830 Washington Ave.
Bronx, NY, 10451-4604

POLICE OFFICER THOMAS McLAUGHLIN
Bronx Robbery Squad
1086 Simpson Street
Bronx, NY 10459

or
42nd Police Precinct
830 Washington Ave.
Bronx, NY, 10451-4604

"JOHN DOES 1-5"
names unknown

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

JEROME JONES,

Plaintiff,

- against -

THE CITY OF NEW YORK, LIEUTENANT KEITH SMITH, from Bronx Robbery Squad, DETECTIVE ELLIS DeLOREN, from Bronx Robbery Squad, DETECTIVE "JOHN" TESSITORE, first name unknown, from Bronx Robbery Squad, DETECTIVE "JOHN" ST. HILLAIRE, first name unknown, from Bronx Robbery Squad, POLICE OFFICER, THOMAS McLAUGHLIN, "JOHN DOES 1-5" names unknown, but believed to be police officers involved in prosecution of plaintiff;

**VERIFIED
COMPLAINT**

Index No:

Defendants.

-----X

JEROME JONES, by his attorneys, MARCHELOS LAW P.C., alleges the following, upon information and belief, as his Complaint:

NATURE OF THE ACTION

1. This civil rights action arises from the defendant Police Officers' unlawful and malicious prosecution of plaintiff, which occurred from charges levied on July 3, 2017 and eventually dismissed unconditionally on January 29, 2016;

2. Plaintiff seeks declaratory relief pursuant to CPLR §3001 and 28 U.S.C. § 2201, compensatory and punitive damages for violation of plaintiff's civil rights under the United States Constitution actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986 and an award of costs, disbursements and attorneys fees under 42 U.S.C. §1988. Plaintiff also seeks

compensatory and other damages permitted under State Law Tort claims as well as for violations of the New York State Constitution;

VENUE

3. That Venue for this action is placed in the County of Bronx because that is the county of occurrence of the acts alleged herein pursuant to CPLR 504(3);

NOTICE OF CLAIM

4. That on April 28, 2016, and within 90 days of the dismissal of the underlying criminal charges against him, plaintiff caused a Notice of Claim to be served upon defendant, THE CITY OF NEW YORK;

5. The Notice of Claim was delivered to the person designated by law as a person to whom such claims may be presented and served;

6. The Notice of Claim was in writing, sworn to by or on behalf of the plaintiff and contained the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when the place where and the manner by which the claim arose, and the damage and injuries claimed to have been sustained;

7. That at no time did defendant, THE CITY OF NEW YORK, request that plaintiff present and give testimony pursuant to General Municipal Law 50-h about the acts and occurrence which

gave rise to this action;

8. The defendant, CITY OF NEW YORK, never requested a physical exam;

9. That at least thirty days have elapsed since the service of the Notice of Claim and that Defendant, CITY OF NEW YORK has either neglected, failed and/or refused to pay and/or adjust the claims within the statutory period of time;

10. This action has been started within one year and ninety days after the happening of the events upon which each claim is based;

PARTIES

11. Plaintiff, JEROME JONES, was and continues to be a resident of the State of New York, County of Bronx;

12. Defendant, the CITY OF NEW YORK is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York;

13. Defendant, the CITY OF NEW YORK, has established and maintains a police department which is an agency of the defendant, CITY OF NEW YORK;

14. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant, LIEUTENANT KEITH SMITH from the Bronx Robbery Squad [hereinafter referred to as "SMITH"];

15. At all times relevant, defendant, "SMITH" was a duly

appointed and acting police officer of the CITY OF NEW YORK;

16. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant, DETECTIVE ELLIS DeLOREN, from the Bronx Robbery Squad, [hereinafter referred to as "DeLOREN"];

17. At all times relevant, defendant, "DeLOREN" was a duly appointed and acting police officer of the CITY OF NEW YORK;

18. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant, DETECTIVE "JOHN" TESSITORE, first name unknown, from Bronx Robbery Squad [hereinafter referred to as "TESSITORE"];

19. At all times relevant, defendant, "TESSITORE," was a duly appointed and acting police officer of the CITY OF NEW YORK;

20. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant, DETECTIVE "JOHN" ST. HILLAIRE, first name unknown, from Bronx Robbery Squad, [hereinafter referred to as "ST. HILLAIRE"];

21. At all times relevant, defendant, "ST. HILLAIRE," was a duly appointed and acting police officer of the CITY OF NEW YORK;

22. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant, POLICE OFFICER THOMAS McLAUGHLIN, [hereinafter referred to as "McLAUGHLIN"];

23. At all times relevant, defendant, "McLAUGHLIN," was a

duly appointed and acting police officer of the CITY OF NEW YORK;

24. At all times relevant, defendant, the CITY OF NEW YORK employed the individual defendants, "JOHN DOE 1-5", whose names are currently unknown, but believed to be police officers involved in the investigation and prosecution of plaintiff [hereinafter referred to as "JOHN DOE" defendants];

25. At all times relevant, the "JOHN DOE" defendants were duly appointed and acting police officers of the CITY OF NEW YORK;

26. At all times relevant, the individual defendants, were acting under the color of State Law;

27. At all times relevant, the individual defendants, were acting both in their individual and official capacity as employees of defendant, THE CITY OF NEW YORK;

28. Notwithstanding the unconstitutional and unlawful conduct, the actions of the defendants were taken in the course of their duties and were incidental to their otherwise lawful functions as agents, servants and employees of THE CITY OF NEW YORK;

FACTS UNDERLYING PLAINTIFF'S CLAIMS FOR RELIEF

29. That on or about July 3, 2013 at approximately 8:00 a.m of that day, Plaintiff, JEROME JONES was falsely and unlawfully arrested by defendant, CITY OF NEW YORK, by its agents, servants and/or employees, including defendant, Smith,

inside of his home at 4000 Laconia Avenue, Bronx, New York;

30. The officers who arrested plaintiff in his home did not identify themselves but it was later learned that the lead officer was defendant, Smith;

31. It is believed that the other officers were the defendants, DeLoren, Tessitore, St. Hillaire, McLaughlin and the "John Doe" officers;

32. These officers entered the home of plaintiff without a warrant, searched the home without a warrant, took plaintiff's bank card along with 2 parking tickets, and arrested Plaintiff in front of his family;

33. Plaintiff was not told why the house was being searched or why he was being arrested;

34. Plaintiff, however, subsequently learned that he was charged with stealing a car and then using that vehicle to rob another individual at gunpoint;

35. Plaintiff was taken to the Bronx Robbery Squad, believed to be located at 1086 Simpson Street, for processing, Bronx Central Booking and then to the Riker's Island "Boat";

36. Plaintiff was arraigned, pled not guilty and bail was set at \$100,000.00;

37. He remained incarcerated for 5 days when he was presented before a Judge and released on his own recognizance on July 8, 2013 at around 3:00 p.m.;

38. During this encounter with the police officers, Plaintiff was unlawfully assaulted, intimidated, threatened, handcuffed, arrested and incarcerated all without just or probable cause by the New York City Police Department, including the individual defendants;

39. Defendants, inclusive of the individual defendants herein, searched the plaintiff's home and confiscated some of his possessions despite the lack of probable cause, the lack of a search warrant and the lack of exigent circumstances;

40. Plaintiff was detained against his will without probable cause until his release on July 8, 2013 at 3:00 p.m. Plaintiff was handcuffed, intimidated and threatened during the period of time that he was arrested and detained;

41. Plaintiff was also approached by defendants on August 14, 2013 at approximately 9:00 a.m. as Plaintiff was walking through the Edenwald Housing Project (where he resides), and was harassed, chided, threatened and cursed by said officers;

42. On or about September 17, 2013, and after the charges relating to the stolen car were dismissed, Plaintiff was charged with a probation/parole violation which caused him to be re-incarcerated from September 17, 2013 through March 28, 2014;

43. That Plaintiff did not do anything to violate his probation/parole, was in compliance with his probation/parole officer, and believes that this was a retaliatory arrest by the

City, the New York City Police Department, the above-described officers and the District Attorney's office because there is no evidence linking him to any other crimes he had been charged with (i.e., stolen vehicle, which was dismissed, and armed robbery);

44. That the plaintiff did not commit any crime;

45. That defendants had evidence which exonerated plaintiff, inclusive of, but not limited to, video images depicting the actual perpetrators of the crime who did not resemble plaintiff;

46. That the prosecution of plaintiff, along with his post arraignment incarcerations were initiated and continued without probable cause or reliable information to believe that any crime had been committed by the plaintiff;

47. That at all times set forth above, plaintiff had knowledge of his confinement and knowledge that his liberty was in jeopardy;

48. That on January 29, 2016, all charges against plaintiff were dismissed unconditionally;

49. That an unconditional dismissal of the criminal prosecution constitutes a favorable determination on the merits;

50. Plaintiff sustained great fear, emotional harm, disgrace, embarrassment and loss of self esteem as a result of the aforesaid malicious prosecution, post arraignment incarcerations, imprisonment, assault, intimidation and abusive

behavior perpetrated upon him by defendants as a result of the afore-referenced events including anxiety and stress and injuries which required medical treatment and caused him to incur the cost for medical care and a loss of wages;

51. Plaintiff suffered from a loss of liberty and deprivation of civil rights protected by the United States and New York State Constitutions as a result of the afore-referenced events;

**FIRST CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHTS UNDER THE FOURTH, FIFTH
AND FOURTEENTH AMENDMENTS TO THE UNITED
STATES CONSTITUTION PREDICATED UPON THE
MALICIOUS PROSECUTION OF PLAINTIFF WITHOUT
PROBABLE CAUSE**

52. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

53. As a result of the afore described actions, including the criminal prosecution of plaintiff without probable cause, the individual defendants, individually and collectively deprived plaintiff, JEROME JONES, of the ***rights, privileges and immunities*** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

54. As a result of the aforescribed actions, these defendants individually and collectively deprived plaintiff, JEROME JONES, of the ***right to be free from unreasonable search***

and seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

55. As a result of the aforescribed actions, these defendants, individually and collectively, deprived plaintiff, JEROME JONES, of his **right to liberty** without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

56. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

57. That the underlying criminal prosecution ended with a dismissal of all charges against the plaintiff. That this dismissal constitutes a favorable determination on the merits;

58. The aforescribed acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

59. As a result of the foregoing, plaintiff has suffered damages;

**SECOND CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER
ARTICLE 1 OF THE NEW YORK STATE CONSTITUTION
PREDICATED UPON THE MALICIOUS PROSECUTION OF
PLAINTIFF WITHOUT PROBABLE CAUSE**

60. Plaintiff repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the

same force and effect as if set forth more fully herein;

61. As a result of the afore-described actions, including the criminal prosecution of plaintiff, JEROME JONES, without probable cause, the defendants, acting jointly, individually and/or vicariously by and through their agents, servants and/or employees, deprived plaintiffs of the rights and privileges secured by the New York State Constitution including, but not limited to, plaintiffs' rights to be free and secure in their person, houses and effects from unreasonable seizures except on probable cause protected under Article I, Section 12 of the New York State Constitution;

62. As a result of the afore-described actions, including the criminal prosecution of plaintiff, JEROME JONES, without probable cause, the defendants, acting jointly, individually and/or vicariously by and through their agents, servants and/or employees, deprived plaintiffs of their unabridged right to the privileges of citizens of the State of New York including plaintiffs' right to life, liberty and property, protected by Article I Section 1 of the New York State Constitution;

63. As a result of the afore-described actions, including the criminal prosecution of plaintiff, JEROME JONES, without probable cause, the defendants, acting jointly, individually and/or vicariously by and through their agents, servants and/or employees, deprived plaintiffs of their rights to equal

protection under the law protected by Article I, Section 11 of the New York State Constitution;

64. That the underlying criminal prosecution ended with a dismissal of all charges against the plaintiff. That this dismissal constitutes a favorable determination on the merits;

65. The afore described acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

66. As a result of the foregoing, plaintiff, JEROME JONES, has suffered damages;

**THIRD CAUSE OF ACTION FOR MALICIOUS
PROSECUTION**

67. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

68. As a result of the foregoing, plaintiff, JEROME JONES, was, without just cause or provocation, maliciously, recklessly, and/or intentionally charged and prosecuted with a crime without probable cause resulting in an unlawful deprivation of liberty and other serious harm to plaintiff;

69. That this prosecution and these charges were continued without just cause or provocation, and without probable cause resulting in an unlawful deprivation of liberty and other serious harm to plaintiff;

70. That at the time and place aforesaid, the defendants,

individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally charged and prosecuted plaintiff without probable cause resulting in an unlawful deprivation of liberty and other serious harm to plaintiff;

71. That the occurrence and damages sustained by plaintiff, JEROME JONES, were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their agents, servants and/or employees, including defendants, Smith, DeLoren, Tessitore, St. Hillaire, McLaughlin and the John Doe defendants, without any provocation on the part of the plaintiff contributing thereto;

72. As a result of the foregoing, plaintiff has suffered damages;

**FOURTH CAUSE OF ACTION FOR NEGLIGENT AND
INTENTIONAL INFLICTION OF EMOTIONAL HARM**

73. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

74. As result of the foregoing, defendants, individually and or vicariously, by and through their agents, servants and/or employees, intentionally, wantonly, recklessly, carelessly and/or

negligently engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society thereby inflicting mental and emotional distress upon plaintiff;

75. As a result of the foregoing, plaintiff has suffered damages;

**FIFTH CAUSE OF ACTION FOR NEGLIGENT
SUPERVISION AND RETENTION**

76. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

77. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK by their agents, servants and/or employees carelessly, negligently, and recklessly hired applicants for the position of police officers;

78. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK by their agents, servants and/or employees carelessly, negligently, and recklessly trained applicants for the position of police officers;

79. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly supervised, controlled, managed, maintained and inspected the activities of its police officers;

80. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or

employees caused, permitted and allowed its police officers to act in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities;

81. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly retained in its employ, police officers clearly unfit for the position who acted in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities prior to the date of the incident complained of herein;

82. That at the time and place aforesaid, the defendant CITY OF NEW YORK, by its agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally assaulted, physically abused, threatened, intimidated, falsely arrested, imprisoned and prosecuted plaintiff causing serious personal injury and harm to plaintiff;

83. That the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of the defendant, CITY OF NEW YORK, its agents, servants and/or employees as set forth above, without any provocation on the part of the plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired,

trained, supervised, controlled, managed, maintained, inspected and retained its police officers and police department;

84. As a result of the foregoing, plaintiff has suffered damages;

SIXTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

85. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

86. That the aforesaid occurrence and resulting injuries to plaintiff was due to the willful, wanton, reckless and/or malicious conduct of the defendants, individually, jointly and/or vicariously by and through their agents, servants and/or employees;

87. That the aforesaid occurrence and resulting injuries to plaintiff was due to the conduct of defendants, acting individually, jointly and/or vicariously by and through their agents, servants and/or employees which reflect utter indifference to the safety and well being of others and specifically the safety and well being of plaintiff;

88. That the aforesaid occurrence and resulting injuries to plaintiff was due to the conduct of defendants, individually, jointly and/or vicariously by and through their agents, servants and/or employees which reflect conscious disregard for the safety and well being of others and specifically the safety and well

being of plaintiff;

89. That the conduct of defendants acting individually, jointly and/or vicariously by and through their agents, servants and/or employees exhibited a reckless disregard for human life and the safety and well being of others and more particularly, for the life, safety and well being of plaintiff;

90. That the conduct of defendants, acting individually, jointly and/or vicariously by and through their agents, servants and/or employees exhibited such a wanton dishonesty as to imply a criminal indifference to the defendants' civil obligations as public servants;

91. As a result of the acts stated above, plaintiff has suffered serious physical and emotional harm in the form of personal physical injuries, great stress and anxiety, a deprivation of liberty without probable cause, denial of due process, invasion of privacy, mental distress, damage to character and reputation and plaintiff will continue to suffer same in the future;

92. As a result of the foregoing, plaintiff has been damaged;

93. As a result of the foregoing, defendants, including defendant Smith, DeLoren, Tessitore, St. Hillaire and McLaughlin, should be made to pay punitive damages to punish them for their wanton, reckless and malicious acts and thereby discourage these

defendants and others from acting in a similar way in the future;

REQUEST FOR RELIEF

WHEREFORE, Plaintiff, JEROME JONES, respectfully requests that judgment be entered as follows:

(A) Declaratory relief as follows:

1. As to the first cause of action, a declaration that plaintiff's rights under the Fourth, Fifth and Fourteenth Amendment of the United States Constitution was violated predicated upon the malicious prosecution of plaintiff without probable cause;
2. As to the second cause of action, a declaration that plaintiff's rights protected by Article 1 of the New York State Constitution was violated predicated upon the malicious prosecution of plaintiff without probable cause;

(B) As to the first through fifth causes of action, compensatory damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction;

(C) As to the first through sixth causes of action, punitive damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction, by reason of the wanton, willful and malicious character of the conduct complained of herein;

(D) As to the first through sixth causes of action, an award to plaintiff of the costs and disbursements herein;

(E) As to the first through seventh causes of action, an award of attorney's fees as provided under 42 U.S.C. § 1988; and

(F) Such other and further relief as this Court may deem just, proper and equitable

Dated: Mineola, New York
April 28, 2017



Steve Marchelos, Esq.
MARCHELOS LAW P.C.
Attorneys for Plaintiff
JEROME JONES
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202

ATTORNEY VERIFICATION

Steve Marchelos, an attorney duly admitted to practice law in the Courts of the State of New York affirms the following to be true under the penalties of perjury pursuant to CPLR 2106.

That affirmant is the attorney for the plaintiff in the action within; that affirmant has read the foregoing **COMPLAINT** and knows the contents thereof; that the contents are true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true; that the reason this verification is not made by plaintiff and is made by affirmant is that plaintiff is not presently in the county where the attorneys for the plaintiff have their office.

Affirmant further says that the source of deponent's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from conversations with said plaintiff and investigations made by affirmant's office on behalf of said plaintiff.

Dated: Mineola, New York
April 28, 2017



Steve Marchelos

NYSCEF DOC. Index No.

RECEIVED NYSCEF: 04/28/2017

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JEROME JONES,
Plaintiff,

- against -

THE CITY OF NEW YORK, LIEUTENANT KEITH SMITH, from Bronx Robbery Squad, DETECTIVE ELLIS DeLOREN, from Bronx Robbery Squad, DETECTIVE "JOHN" TESSITORE, first name unknown, from Bronx Robbery Squad, DETECTIVE "JOHN" ST. HILLAIRE, first name unknown, from Bronx Robbery Squad, POLICE OFFICER, THOMAS McLAUGHLIN, "JOHN DOES 1-5" names unknown, but believed to be police officers involved in prosecution of plaintiff;
Defendants.

SUMMONS AND VERIFIED COMPLAINT

MARCHELOS LAW P.C.

ATTORNEYS FOR PLAINTIFF(S)

87 MINEOLA BLVD.

MINEOLA, NEW YORK 11501

(516) 248-0202

To: Attorney(s) for Defendants

To: Attorney(s) for Defendants

To: Attorney(s) for Defendants

To: Attorney(s) for Defendants

Service of a copy of the within

is hereby admitted.

Dated:

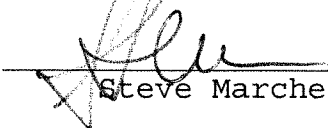
.....
Attorney(s) for

Attorney Certification Pursuant to 22 NYCRR Section 130-1.1.A

The undersigned, an attorney duly admitted to practice law in the Courts of the State of New York, respectfully affirms the truth of the following statement under the penalty of perjury pursuant to CPLR §2106

The undersigned attorney hereby certifies that to the best of his/her knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the paper(s) or the contents herein are not frivolous as defined in Subsection C of Section 130-1.1.

Dated: April 28, 2017


Steve Marchelos